FairWork Commission

DECISION

Fair Work Act 2009
s.185—Enterprise agreement

Wilson Mining Services Pty Ltd T/A Wilson Mining
(AG2022/5522)

WILSON MINING SERVICES PTY LTD – NSW ENTERPRISE AGREEMENT 2022

Coal industry

DEPUTY PRESIDENT EASTON — SYDNEY, 8 FEBRUARY 2023

Application for approval of the Wilson Mining Services Pty Ltd – NSW Enterprise Agreement 2022.

[1] Wilson Mining Services Pty Ltd T/A Wilson Mining (**the Employer**) has made an application for the approval of the Wilson Mining Services Pty Ltd – NSW Enterprise Agreement 2022 (**the Agreement**). The application was made under s.185 of the *Fair Work Act 2009* (**the Act**). The Agreement is a single enterprise agreement.

[2] I am satisfied that each of the requirements of ss.186, 187 and 188 as are relevant to this application for approval have been met.

[3] The Agreement is approved and, in accordance with s.54 of the Act, will operate from 15 February 2023. The nominal expiry date of the Agreement is 30 June 2026.

THE SEAL OF THE FAIR WORK COMMISSION

DEPUTY PRESIDENT

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WILSON MINING SERVICES PTY LTD – NSW ENTERPRISE AGREEMENT 2022

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1.0 Contents

1.0 AGREEMENT TITLE

This enterprise agreement is to be known as the WILSON MINING SERVICES PTY LTD – NSW ENTERPRISE AGREEMENT 2022.

2.0 PARTIES TO THE AGREEMENT

The parties to the agreement shall be: WILSON MINING SERVICES PTY LTD (Hereinafter referred to as "the Company"),

And

ALL employees of the Company defined by Schedule A of the Black Coal Mining Industry Award 2020 (the employees)

3.0 INCIDENCE AND APPLICATION

3.1This Enterprise Agreement shall commence on the date prescribed in the approval notice issued by the Fair Work Commission. The nominal expiry date of this Agreement is 30th June 2026.

This Agreement shall be read in conjunction with the Black Coal Mining Industry Award 2020. Any matter not specifically spelt out in this Agreement shall be covered by the relevant clause of that Award.

3.2 Where there is an inconsistency between this Agreement and the NES, and the NES provides a greater benefit, the NES provision will apply.

3.3 The parties to this Enterprise Agreement undertake to commence negotiations for a replacement agreement six (6) months prior to the expiration of this agreement.

3.4 This Enterprise Agreement will cover work carried out in NSW.

3.5 The parties to this Agreement acknowledge the important role of the Mining & Energy Union (currently a division of the CFMMEU) at the workplace.

4.0 CONTRACT OF EMPLOYMENT

4.1 All Employees (other than Casuals) of the Company shall be employed on a weekly basis (Sunday to Saturday) and may be required to work at any location of the Company's operation.

4.2 The employer must not terminate an employee's employment unless the employee has been given either a period of notice required in 4.3 or compensation instead of notice equivalent to payment for the notice period or part thereof.

4.3 Required period of notice:

Employee period of continuous service with the Employer	Period of Notice
Not more than one year	1 Week
More than one year but less than three	2 Week
More than three years but less than five years	3 Weeks
More than five years.	4 Weeks

The period of notice is increased by one week if the employee is over 45 year of age and has completed at least two years of continuous services with the employer.

Fixed term employees are to be given one week's notice or payment in lieu and receive all accrued leave entitlements plus the average bonus earned for the period of employment. If the period of employment exceeds 6 months they shall receive in addition to the above, two weeks retrenchment pay up to 12 months employment at which time they would receive 3 weeks' pay for each years' service, if retrenched.

4.4 Permanent and fixed term employees must give notice of termination of employment as per Clause 4.3 above.

4.5 Employees shall perform such work as the employer shall from time to time reasonably require, including work which is incidental and peripheral to the employee's main task.

An employee not attending for or not performing such work shall accept loss of payment for the actual time of such non-attendance or not-performance. The employer may direct an employee to carry out such duties as are within the limits of an employee's recognised skills, competence and training. In so doing an employee shall use such tools and equipment as may be required provided that the employee has been properly training in the use of such tools and equipment.

5.0 EMPLOYMENT CLASSIFICATIONS

Employment shall be permanent, fixed term or casual.

Fixed Term;

Fixed term means employment for a defined period or project which does not exceed 12 consecutive months and not less than 1 month.

Casual Employment;

In lieu of the paid leave provisions contained in this Agreement they shall receive a casual allowance payment based on 25.5% of their Hourly rate. The casual allowance payment shall be calculated on the hours worked up to 35 hours per week.

The provisions of Protective Clothing for permanent employees shall also apply to casual employees.

In addition, casual employees shall have paid on their behalf employer contributions for superannuation and long service leave.

Termination and retrenchment provisions of the Agreement will not apply to casual employees.

Safety equipment shall be supplied by the Company.
Casual employees will be entitled to transition to permanent or fixed term work in line with the NES.

6.0 HOURS OF WORK

6.1 The ordinary hours of work shall be thirty five (35) hours per week averaged over the roster cycle. The minimum hours for permanent employees will be equivalent of forty (40) hours paid at the employee's Hourly rate per week. Hours of work may not always be consistent with the hours worked at the mine site. To qualify for payment the employee must notify the Company within 24 hours from the completion of the last shift worked if a minimum of 40 equivalent hours will not be attained in any current pay period.

6.2 The Company shall determine underground shift lengths to be worked up to a maximum of 12 hours. Shift lengths greater than 12 hours or where three consecutive nightshift lengths are greater than 10 hours will be subject to fatigue management.

6.3 Change of Shift:

Employees covered by this Agreement may be required to work different shifts from time to time.

12 hours' notice shall be given before a change of scheduled shift start time. If less than 12 hours' notice is given then double time rates will apply for the shift worked. This clause does not apply to unscheduled shifts or if an employee is required to have ten (10) hours break in accordance with Clause 7.3

6.4 Shift Loading

All ordinary hours worked on afternoon shift (start time being after 12-midday) will be paid at 115% of the Hourly rate.

All ordinary hours worked on night shift (the start time being after 6pm) will be paid at 125% of the Hourly rate.

6.5 Shift Cancellation

An employee shall be paid a minimum of 4 hours at their Hourly rate if the scheduled shift is cancelled and less than 12 hours' notice is given of the cancellation or the employee is paid for the hours worked up until the time the shift is cancelled.

7.0 OVERTIME

7.1 Monday to Friday 8 single time hours will be paid daily, until 35 ordinary hours are totalled per week. Any additional hours will be paid at double time.

7.2 It is expected that all employees be available to work reasonable overtime. An employee may refuse to work overtime in circumstances where the working of such overtime would result in the employee working hours which are unreasonable having regard to:

I. Any risk to employee health and safety
II. The employees personal circumstances including any family responsibility
III. The needs of the Company
IV. The notice (if any) given by the Company of the overtime and by the employee of their intention of refuse it and
V. Any other relevant matter

7.3 For Employees that are assigned a roster, this will be provided to the Employee during the week prior. For these Employees, if they are required by the Company during the rostered week to work an additional shift over and above their assigned roster this shift will be paid as an overtime shift.

7.4 Where overtime work is necessary it will be organised so that employees have at least ten (10) hours off duty between work on successive days. If, on the instructions of the employer an employee resumes or continues work without having had ten consecutive hours off duty from the finish time of the previous shift (excludes standby time as outlined in clause 8) to the start time of the next shift, the employee shall be paid at double time during ordinary hours until released from duty.

If an employee is required to have a ten (10) hour break in accordance with Fatigue Management Procedures, there is no loss of normal pay for any hours the employee did not attend while having the ten (10) hour break.

7.5 An employee recalled to work overtime after leaving the workplace shall be paid a minimum of four (4) hours work even if the work to be performed is completed within a shorter period.

7.6 If the period of follow-on overtime the employee is required to work is more than 1.5 hours the employee, before starting such overtime, will be allowed thirty (30) minutes crib time without deduction of pay or paid one (1) hour at their Hourly rate.

7.7 No minimum blocks of overtime will be worked. All employees will be expected to work daily required overtime to finish a cycle of work when requested.

7.8 An employee shall be paid at double time for hours worked greater than 43.5 actual hours worked per week.

8.0 STANDBY

8.1 An employee may be requested to be on 12 hour standby during emergencies prior to being advised of a start time. Payment during this period will be at their Hourly rate for the first eight (8) hours and then at double time for additional standby hours within the twelve (12) hour period. However, standby hours performed on weekends and public holidays, will attract the appropriate overtime rates.

8.2 Each 12 hour shift standby period stands alone and the employee will be notified should additional standby be required.

8.3 To be eligible for standby payment after the completion of a shift, the total number of worked/standby hours cannot exceed the requirements of the Company Fatigue Management Policy.

8.4 For the current pay period, 8 hours only will be credited towards the 43.5 actual hours worked, from any number of consecutive standby periods.

9.0 WAGES

9.1 The wages described in 9.2 shall apply to all employees for their ordinary working hours (Hourly rate) and are inclusive rates which absorb all Award allowances except shift loadings, first aid and casual allowance. i.e. No other site allowances are payable.

9.2 Wages:

Title	Hourly Rate First Pay Period after Commencement	Hourly Rate First Pay Period Commencing after 1/7/2023 (3% Increase)	Hourly Rate First Pay Period Commencing after 1/7/2024 (3% Increase)	Hourly Rate First Pay Period Commencing after 1/7/2025 (3% Increase)
In-experienced Miner	$29.72	$30.61	$31.53	$32.48
Experienced Miner	$34.02	$35.04	$36.09	$37.17
Appointed Shift Supervisor / Fitter	$37.81	$38.95	$40.12	$41.32
Appointed Supervisor	$38.79	$39.96	$41.15	$42.39
Operations Supervisor	$41.36	$42.60	$43.88	$45.20

Note: An Experienced Miner required to act up into the Appointed Shift Supervisor classification will be paid the Appointed Shift Supervisor classification rate for that shift.

An underground Operator/Fitter will be paid at the Appointed Shift Supervisor rate.

The above wages shall be maintained for the life of the agreement. An employee classified as an In-Experienced Miner will remain on that classification for a minimum of 12 months.

9.3 All wages are to be paid by electronic funds transfer on a Weekly basis. Employees may nominate the account (s) into which funds are to be transferred.

9.4 Upon termination of employment wages due to an employee are to be paid on the day of such termination or forwarded by electronic transfer or post to the employee's last known address within seventy-two (72) hours.

9.5 Employees shall be supplied with all necessary tools as required.

9.6 Employees designated by the Company as First Aid officers shall receive an additional payment $5.00 per shift. The Company will pay for the cost of the first aid course and time spent undergoing the course, by the designated employees.

10.0 CRIB TIME

10.1 A period of thirty (30) minutes shall be allowed each shift for the taking of crib for shift lengths up to and including ten (10) hours.

If an employee works shifts of over 10 hours duration, the employee will be entitled to a further 30minute break. Such period shall be counted as time worked.

10.2 An employee shall not be compelled to work for more than five hours without a break for crib. Where an employee works for more than five hours without a break for crib the employee shall be paid for such work beyond five hours at double time until a crib break is allowed.

If an employee has no crib taken after 5 hours, on a shift when they are already being paid double time rates, they will be entitled to an additional hour paid at the overtime rate, if approved by the client in advance.

11.0 BONUS SCHEME

11.1 A bonus shall be negotiated to reward the company's employees and to be provided an incentive to achieve key performance targets. The full bonus paid will be $420 per week. The bonus calculation is based on hours worked up to a maximum of 35 hours for full bonus.

11.2 The Bonus will increase to $435 per week on the first pay period commencing after 1st July 2024 and to $450 per week on the first pay period commencing after 1st July 2025.

12.0 CHEMICAL ALLOWANCE

Employees will be entitled to a Chemical Allowance for each completed shift worked during a chemical application shift.

A chemical application is defined by the use of PUR, Marisil, Rocsil or Fenoflex injections into strata or goaf, for remedial action.

Chemical Allowances will be paid as follows:

Rocsil cavity fill injections - $100.00 per shift

PUR, Marisil & Fenoflex - $50.00 per shift.

Chemical allowances will not be paid on any work related to any seal construction, including Micon Seals.

13.0 TRAINER & ASSESSOR ALLOWANCE

Employees qualified as trainer/assessors and nominated by the Company will be paid a $40 allowance per shift when performing training and assessing duties as directed by the company.

14.0 MINING & ENERGY UNION (MEU) ACTIVITIES

14.1 Monthly MEU Meetings:

The employer shall provide for a quarterly, two (2) hour paid MEU meeting. The purpose of these meetings is to inform members of MEU activities. In addition, the employer shall provide a paid Annual General Meeting.

14.2 MEU Officials – Onsite Business:

Employees elected as Lodge Officials at the company will be recognised as representatives of the MEU and will be allowed the necessary time and resources during working hours to carry out their duties. Elected Lodge Officials will be allowed to leave for the purpose of attending MEU meetings and/or Trade Union training, provided such leave is approved in advance by the Company. The Company will pay a maximum total of 15 days payment during the term of the Agreement for this purpose

15.0 DISCIPLINARY PROCEDURE

This procedure is to be followed for all disciplinary cases of breaches of standards or procedures including those relating to safety; unsatisfactory performance or conduct; attendance; environment; harassment; discrimination; or drugs and alcohol. An employee may choose to be accompanied by and employee representative/support person at any stage of this procedure.

Step 1 – Verbal Warning/ Counselling

Where the Company has a first concern regarding an Employees performance and/or conduct, this step shall be taken;

- An explanation of the concern and the Employees performance and/or conduct expectations of the Company will be given.
- The Employee will be given an opportunity to provide an explanation
- If not reasonable, the Employee will be reminded of this procedure and this is the first warning. At that time the Company will inform the Employee that failure to correct the performance and/or conduct, or any other problems, with the Employee's performance or conduct may lead to further warnings. Such warning will apply for a maximum of twelve (12) months.
- The warning is to be documented and will be confirmed to the employee in writing.
- All documentation will be retained in the Employee's personnel file.
- During counselling the Employee will be made aware of the standards of improvement in performance and/or conduct that are to be made.

Step 2- Written Warning

If the Company has a second concern about the Employee's performance and/or conduct regarding reasonable standards of performance and/or conduct this step shall be taken:

- The Company will explain its concern with the Employee's performance and/or conduct
- The Employee will be given an opportunity to provide an explanation
- If not reasonable, a written warning will be given referring to the first warning (at step 1) and the opportunity previously given for improvement, if applicable. The written warning will inform the Employee that this is a final warning and that failure to meet the stated standard

of improvement or any further instances of poor performance and /or conduct may lead to dismissal.

- The written warning will also provide feedback to the Employee of how to improve performance and/or conduct and will apply for a maximum period of eighteen (18) months.
- All documentation will be retained in the Employee's personnel file.

Step 3 – Dismissal

If the Company has a third concern relating to the Employee's performance and/or conduct the following will apply:

- The Company will explain its concern with the Employee's performance and/or conduct
- The Company will give the Employee an opportunity to provide an explanation
- The Company will consider the explanation
- Based on the explanation, the Company may terminate the employment

While in most cases each step of the procedure will be followed in sequential order, in certain circumstances of serious breach or repeated breach of a similar nature, may result in the Employee going straight to Step 2 of the procedure.

Summary Dismissal not affected- This procedure does not take away the right of the Company to dismiss an Employee without notice for serious misconduct.

Wherever practical, disciplinary meetings or investigations will be conducted during normal working hours. Where due to operational reasons meetings cannot be reasonably conducted during working hours, employees may be required to attend for a maximum of one (1) hour and be paid at their Hourly rate for attendance.

All Employees that are refused access to a Mine site as a result of disciplinary action will not displace any employee (including casual employees) working at other locations. The employee will be stood down without pay.

16.0 PERSONAL PROTECTIVE EQUIPMENT/ TOOLS

On commencement of employment, and on an annual basis thereafter, each employee shall be provided with two sets of outer industrial clothing, one set of protective boots and one winter jacket.

After successful completion of the three (3) month probation period, each new employee will be issued an additional two sets of outer industrial clothing. Variations in the range of outer clothing will be considered.

Additional issue may be required for damaged clothing and/or equipment upon satisfactory evidence of such damage. Task specific safety equipment such as ear plugs and safety glasses will be provided on a needs basis at no cost to all employees. Employees shall be provided with all necessary tools as required.

17.0 DISPUTES PROCEDURE

17.1 When a dispute arises either out of a matter arising under this agreement or in relation to the NES, the matter shall in the first instance be discussed between the employee and the immediate supervisor involved. If the matter remains unresolved:

17.2 It shall be referred, in writing, for discussion between the employee and the Company's Operational Supervisor representative. If the matter remains unresolved:

17.3 It shall be referred for discussion between the employee and the nominated senior Company Officials. If the matter remains unresolved:

17.4 Then a forty-eight (48) hours 'cooling off' period will apply before the dispute is referred to Fair Work Commission for conciliation and/or arbitration.

17.5 By agreement between the parties any or all of the aforementioned steps may be by-passed in the interests of speedy resolution of the dispute.

17.6 A party to a dispute may appoint another person, organisation or association to accompany or represent them in relation to a dispute.

17.7 Work Arrangements during a Dispute Resolution;

When a dispute occurs with the employer, work shall proceed under the conditions prevailing before the dispute. Where those conditions are themselves disputed work shall continue in accordance with the reasonable direction of the Company, the Employees recognised skills and safe working practices.

17.8 Witness Payments;

Where a dispute is referred to the Fair Work Commission representatives and witnesses required to attend shall be regarded as being on duty and shall be paid for attending. The Company shall also pay all reasonable travel and other expenses (such as transcript expenses) associated with such attendance.

18.0 PERSONAL/ CARERS LEAVE

An employee (other than casual employees) who is absent from work due to personal illness or injury shall be entitled to be paid personal/carers leave subject to the following conditions: -

18.1 Accrual:

On commencement of employment and every following twelve (12) months each permanent employee shall be credited with fifteen (15) days personal/carers leave at 8 ordinary hours. Fixed term employees shall receive the wages and conditions of permanent employees except that on commencement of employment that shall be credited with 9.23 hours of personal/carers leave and a further 2.30 hours for each completed week thereon.

18.2 Accumulation:

Personal/Carers leave not taken by an employee shall accumulate without limitation. Employees may elect to cash out up to 2 weeks of personal/carers leave per annum, providing the following conditions have been met:

- A minimum of 25 days of personal/carers leave will remain in accruals after the cash out
- The cash out is requested by the Employee, and agreed to by the employer, both in writing
- Personal / Carers Leave cash out will be paid as if the Employee had taken the leave.

Additionally, provision shall be made for employees on their anniversary date to salary sacrifice their next allocation of 15 days personal/carers leave into Mine Super if their accrued personal/carers leave is in excess of 15 days at that time. The Employer at the request of the Employee in writing will arrange the transaction. Written requests must be received no later than one month prior to the employee's anniversary date. Where an employee elects to salary sacrifice a portion of personal/carers leave such leave shall not accumulate. Personal/Carers leave taken shall be deducted from the employee's accumulated personal/carers leave. Permanent employees shall be paid for each day of personal/carers leave at 8 ordinary hours plus the average bonus.

18.3 Workers' Compensation:

An employee shall not be entitled to pay personal/carers leave of absence for any period in respect of which the employee is entitled to Workers' Compensation.

18.4 Notification/ Proof:

Where an absence is in excess of two (2) consecutive days a medical certificate must always be submitted. Each employee is requested to contact their supervisor prior to being absent on personal/carers leave except in extreme circumstance. Employees are required, within twenty-four (24) hours of the commencement of such absence, to inform the Company of their inability to attend for duty; the nature of the illness or injury and the estimated duration of the absence.

Employees shall not be terminated for the temporary absence due to illness or injury if they provide the employer with a medical certificate within seventy-two (72) hours of their absence.

18.5 Payment:

Permanent employees shall be paid for each day of personal/carers leave at 8 hours at their Hourly rate plus the bonus.

18.6 Payment and Termination:

An employee who is retrenched, whose services are terminated through operation of mineworker's pension legislation because of age, or by the Employer because of ill health, or who dies and who at the date of such retrenchment, termination or death has accrued ten (10) or more days of personal/carers leave shall be granted payment on the basis of eight (8) hours at their Hourly rate for each day of personal/ carers leave accrued and not already taken.

19.0 JURY SERVICE

A permanent employee required to attend jury service during normal working hours shall be reimbursed by the employer an amount equal to the difference between the amount paid in respect of attendance for such jury service and the amount of wages which would have been received in respect of ordinary pay, had the employee not been on jury service.

20.0 COMPASSIONATE LEAVE

20.1 In the event of the death of an employee's spouse or partner, child (including an adult child, adopted child, step-child, or an ex nuptial child), parent, grandparent, grandchild or sibling of the employee (or spouse of partner of the employee):

A. Contracts or develops a personal illness that poses a serious threat to his or her life;
B. Sustains a person injury that poses a serious threat to his or her life; or
C. Dies;

The employee shall be entitled to a maximum of two (2) days leave without loss of ordinary pay on each permissible occasion. If notified during work, the balance of the shift shall be granted and not included in the two (2) days.

20.2 Subject to approval by the Company, an employee absent from work because of a pressing domestic nature shall be entitled to leave of one (1) day without loss of pay.

21.0 PARENTAL LEAVE

Employees are entitled to parental leave in accordance with the relevant legislation.

22.0 WEEKEND AND PUBLIC HOLIDAY

22.1 Recognised Holidays:

All recognised holidays for the purpose of this agreement are:-

- New Year's Day
- Australia Day
- Good Friday
- Easter Saturday
- Easter Sunday
- Easter Monday
- Union Picnic Day
- Anzac Day
- Queen's Birthday
- Labour Day
- Christmas Day
- Boxing Day

Or such other day/s as may be gazetted.

22.2 Holiday Payments:

A permanent employee not required to work a recognised public holiday, shall be paid for that day at 8 hours at their Hourly rate plus the bonus. Employees required to work on a recognised public holiday shall be paid at double time for the first 8 hours and triple time thereafter.

Casual employees will be paid triple time for all hours worked.

22.3 Saturday Work:

The rate for all Saturday work shall be at double time

22.4 Sunday Work

The rate for all Sunday work shall be at double time

22.5 Minimum Payment:

Unless continuous with work commenced the previous day or not reasonably notified: an employee called on to work on a Saturday, Sunday or Holiday, shall be paid for at least four (4) hours at double time.

23.0 ANNUAL LEAVE

23.1 Period of Leave

Permanent employees will be credited with twenty-Five (25) days annual leave on their anniversary date of permanent employment each year. Employees who have less than twelve (12) months service will be credited with annual leave on a pro rata basis for retrenchment purposes only.

Fixed term employees shall accrue annual leave at 3.846 hours for each completed week of service. An employee will be additionally credited with 1.14 hours of annual leave for each Saturday, Sunday or public holiday worked.

23.2 Time of Taking Leave:

Annual Leave can be taken in single days to a maximum of five (5) days upon giving the employer one week’s notice. Employees who wish to proceed on any annual leave (other than single day leave) will give their immediate supervisor no less than four (4) weeks’ notice of their intention to do so. The Company shall reply to annual leave requests within 7 days of notification.

23.3 Recognised Holidays Falling During Period of Leave:

If a recognised holiday falls within an employee’s annual leave and is observed on a day which ordinarily would have been a working day for that employee, that day will be added to the employee’s annual leave accrual for each recognised holiday.

23.4 Payment on Termination of Employment:

On the termination of employment an employee who has accrued leave will be paid for untaken days of leave at the rate of 8 hours at their Hourly rate plus 25% loading of that rate, plus the bonus.

23.5 Payment Prior to Commencement of Leave:

Each employee shall be paid weekly for the period of annual leave unless other arrangements have been made with the payroll Administrator

23.6 Payment for Annual Leave

An employee taking annual leave must be paid:-

The Employee's Hourly rate for 8 hours of each day taken plus a loading of 25% of that rate, plus bonus.

23.7 Taking of Leave Before Accrued:

The Company may allow annual leave to be taken by an employee before the right thereto has accrued. Leave that has been paid in accordance with this clause will be require to be re-paid to the Company on termination of employment.

23.8 Cash Out of Annual Leave

An employee may cash out up to 2 weeks of annual leave per annum, providing the following conditions have been met:

a) The Company and employee agree to the cash out in writing;
b) The annual leave is cashed out at the same rate as if the employee had taken the leave; and
c) The employee has 4 weeks annual leave remaining in their accruals.

24.0 LONG SERVICE LEAVE

An employee shall accrue long service leave in accordance with the Federal Legislation (as amended) currently at the rate of thirteen (13) weeks for each eight (8) years of continuous service in the Coal Mining Industry.

24.1 Time of Taking

Long Service leave may be taken at any time by an employee who has become due for such leave provided that:

I. An employee seeking to take long service leaver shall give four (4) weeks' notice of his intention to his immediate supervisor on the form provided;
II. The operations which the employee works will not, in the opinion of the employer, be affected by the granting of the leave at that time;
III. An employee who is accumulated thirteen (13) weeks of entitlement may, with the consent of the employer, take such thirteen (13) weeks;
IV. Following on the first entitlement of long service leave, and whilst the employment remains continuous, an employee shall be entitled to take further long service leave for each sixty four (64) weeks of service;
V. Long service leave shall not be taken in periods of less than two weeks

24.2 Long Service Leave Payment:

On or before the last working day prior to the commencement of long service leave, an employee shall be paid 40 hours at their Hourly rate, plus bonus for each week of leave taken.

24.3 Recognised Public Holiday Falling During Period of Leave:

If a recognised holiday falls within the employee's Long Service Leave, and it is observed on a day which ordinarily would have been a working day for that employee, there shall be added to the period of Long Service Leave one day, being in ordinary working day, for each such recognised holiday.

24.4 Payment on Termination:

i. Where the services of an employee are terminated in accordance with Mineworker's Pension Legalisation because of age, or by the Employer because of ill health, or in the case of death, such employer shall be granted payment (40 hours at their Hourly rate, plus bonus for each week of leave taken) for any long service leave accumulated and not already taken.
ii. On Termination of employment an employee who at the date of such termination has accumulated a minimum of thirteen (13) weeks of entitlement shall be granted payment at 40 hours at their Hourly rate, plus bonus for each week of leave taken for any long service leave accumulated and not already taken. Provided that where special circumstances exist, an employer upon application to Fair Work Commission may be granted relief from the obligation herein imposed upon such terms as Fair Work Commission may deem just and expedient.

25.0 FAMILY AND DOMESTIC VIOLENCE LEAVE

Employees are entitled to Family and Domestic Violence Leave in accordance with the Act.

26.0 OTHER LEAVE

All other leave is provided in line with the NES.

27.0 TRAVEL AND ACCOMMODATION

There are four (4) main coal mining districts in NSW:

- Northern;
- Southern;
- The Hunter Valley:
- Western

Travel payments will not apply when employees travel to any mine within the district they reside in (home district)

27.1 Travel Allowances will only be paid when employees are required to work outside their home district or for emergency work.

Travel to emergency work within an employee's home district will attract $50.00 each way travel allowance.

Travel payments will apply each way as per the following table. The Company will determine payments for travel to locations not included in this table based on the calculations below.

Region – Hunter Valley	**Travel Allowance**
Hunter Valley (Emergency)	$50.00
Northern	$250.00
Southern	$180.00
Western	$200.00
Region – Western	**Travel Allowance**
Western (Emergency)	$50.00
Northern	$200.00
Southern	$200.00
Hunter Valley	$200.00
Region – Northern	**Travel Allowance**
Northern (Emergency)	$50.00
Hunter Valley	$250.00
Southern	$350.00
Western	$200.00
Region – Southern	**Travel Allowance**
Southern (Emergency)	$50.00
Hunter Valley	$180.00
Northern	$350.00
Western	$200.00

The above travel payments will be fixed for the life of the agreement.

Travel payments for out of the district work are not applicable when the Company provides accommodation and the accommodation is not used.

Where the Company has provided a Company vehicle, travel payments will not apply.

The Company shall, if requested by a permanent employee facilitate the use of a Motor Vehicle Novated Lease.

27.2 Accommodation

Employees will not be entitled to accommodation allowances when working within the district they reside in. However, employees may be provided with overnight accommodation for the purpose of fatigue management.

a) Within an Employees Home District

When accommodation is required for fatigue management, single room sleeping accommodation may be provided by the Company.

b) Other Areas

Employees engaged in work outside of their home district, receiving approval for overnight accommodation will be entitled to accommodation and meal allowances. The Company will provide single room sleeping accommodation.

Employees will not be required to relocate from the Hunter Valley district. All employees will be requested to respond to Emergency work at any place of the Company's operation, to meet peak workloads.

c) Away Allowance

If an employee is called upon to work on short term emergency work, not at their regularly scheduled place of work, outside their district and accommodation is provided and used, a $80 Away Allowance will be paid per shift.

27.3 Where accommodation excluded meals, the Company shall provide an after tax Meal Allowance of $80.00 per day

27.4 Gunnedah Basin Allowance

Employees who are not local to the Gunnedah basin and are assigned to work within the Gunnedah basin will be provided a flat allowance of $100 for each shift worked.

27.5 Interstate Travel

The Company and Employee may agree for the Employee to travel interstate to undertake work for Wilson Mining. An Employee may not unreasonably withhold their agreement.

All travel is paid at their Hourly rate. Standard payment for a one way trip Newcastle / Mackay is seven (7) hours. An employee may return home early under exceptional circumstances which are satisfactory to the Company, otherwise they employee will be required to pay for the cost of return flights. An additional eight (8) hours will be paid at their Hourly rate for travel on a public holiday.

Casual employees will receive a minimum of 24 hours per week when working interstate.

The Company shall attempt to return the employee home after a period of approximately four (4) weeks. All employees returning home will be on unpaid days off for seven (7) days, unless agreement is reached by the company and the employee.

28.0 RETRENCHMENT PAY

28.1 Should there be a requirement to reduce manning levels voluntary redundancy arrangements will be offered at first instance. All expressions of interest will be considered by the Company based on individual merits and in the best interest of the business. Registering an expression of interest is not a guarantee that the offer of voluntary redundancy will be accepted

28.2 Should retrenchments occur, it will be on the basis of 'last on, first off' according to the length of service at Wilson Mining Services Pty Ltd, providing that where separate streams and specialist skills of Employees exist it will apply to the appropriate stream except where another mechanism is agreed between the parties to this Agreement. The relevant streams are as follows:

- Operations Supervisors
- Trade Qualified Fitters
- Mine Workers

28.3 Redundancy based on seniority will be maintained for the life of this Agreement. The Parties agree to negotiate a change in this process for the next Agreement.

28.4 Permanent employees retrenched at Wilson Mining Services Pty Ltd will receive 4 weeks' notice of impending retrenchment.

28.5 Permanent employees will receive a minimum of three (3) weeks' pay (at the rate of ordinary hours at their Hourly rate) per year of service as retrenchment pay for each completed year of service at Wilson Mining Services Pty Ltd, with a minimum payment of two weeks for less than one completed years' service.

28.6 Accrued personal/carers leave at the time of retrenchment will be paid at the rate of 8 ordinary hours at the Hourly rate, if the employee has a minimum of 70 hours of personal leave accrued at the time of retrenchment.

28.7 Accrued annual leave at the time of retrenchment will be paid at the rate of 8 ordinary hours at the Hourly rate plus 25% loading of that rate plus any bonus.

29.0 WORKERS COMPENSATION

An employee who is injured during the course of his/her employment shall be entitled to payment in accordance with the Worker's Compensation Act 1987 (as amended) as it related to the Coal Mining Industry.

30.0 ACCIDENT PAY

30.1 General:

An employee in receipt of weekly payments under the provisions of the Workers Compensation Act 1987 N.S.W shall be entitled to receive accident pay from the Company subject to the conditions and limitations set out in this provision.

30.2 Payment during Incapacity:

The Company will pay or cause to be paid accident pay during the incapacity of the employee (within the meaning of the Act) until such incapacity ceases, or until the expiration of a period of seventy-eight (78) weeks from the date of injury, whichever event shall first occur.

30.3 Meaning of Accident Pay:

For the purpose of the clause accident pay means:

For the initial period of thirty-nine (39) weeks from date of injury, employees will receive a weekly payment representing the difference between the weekly amount of compensation to the employee by virtue of the said Act and the weekly amount that would have been received on forty (40) hours at the Hourly rate including shift loading and bonus at the time of injury.

For a further period of thirty-nine (39) weeks a weekly payment representing the difference between the weekly amounts of compensation paid to the employee by virtue of the said Act and the weekly amount that would have been received on forty (40) hours at the Hourly rate of the incapacitated employee at the date of the injury.

30.4 Pro-Rata Payments:

In respect of incapacity for part of a week, the amount payable to the employee as accident pay will be a pro-rata amount.

30.5 When not entitled to Payment

An Employee shall not be entitled to any payment under this section in respect of any period of paid annual leave or Long Service Leave or for any paid public holiday.

30.6 Redemptions

In the event that an employee receives a lump sum in redemption of weekly payments under the Act, the liability of the Company to pay accident pay as herein provided shall cease from the date of such redemption.

30.7 Damages Independent of the Act:

Where an employee recovers damages from the Company or from a third party in respect of the incapacity for work independently of the Act, such employee will be liable to repay to the Company the amount of accident pay which the Company has paid under this section, not exceeding the amount received by the employee, and the employee will not then be entitled to any further accident pay.

30.8 Termination

Where the Company givens notice of termination of employment, other than a retrenchment notice, to an employee absent from work on accident pay, the termination of employment will not take effect until such incapacity ceases or until the expiration of a period of seventy-eight (78) weeks from the date of injury, whichever event shall occur first.

Where an employee is to be retrenched, then following the expiration of the retrenchment notice the employees employment will be terminated and this will not affect the liability of the Company to continue to pay accident pay.

30.9 Calculation of Period:

The Seventy-eight (78) week's period commenced from the first day of incapacity for work, which may be subsequent to the date of injury. Intermittent absences arising from the injury are to be cumulative in the assessment of the seventy-eight (78) week limitation.

31.0 SUPERANNUATION

The Company contributions will be made in accordance with Wilson Mining obligations under the *Superannuation Guarantee Act 1992*.

Contributions will be made to

1. The stapled superannuation fund applying to the Employee; or
2. A complying superannuation fund nominated by the Employee; or
3. The MineSuper Fund (the default fund) where the Employee has elected not to exercise choice of fund and no stapled fund exists for the Employee.

Contributions made by the Company are made in satisfaction of any obligation the Company has to make or forward any superannuation payments on the Employee's behalf including any obligations under the *Superannuation Guarantee Act 1992*.

Any amounts salary sacrificed by employees will not be used by the Company to reduce its superannuation ordinary time earnings calculation for individual employees.

Where the Employee salary sacrifices contributions will always be made on the basis of the Employee's pre-salary sacrificed earnings.

The term 'Ordinary Time Earnings" includes:

a) Hours of work, which for the purposes of this definition shall be the hours scheduled to work at the site to which the employee is normally allocated, and includes rostered hours that are paid at overtime
b) Production Bonus as outlines in Clause 11.0
c) Casual Loading as outlines in Clause 5.0
d) Shift Loading as outlines in Clause 6.4
e) First Aid Allowance as outlines in Clause 9.6
f) Stand by hours are paid up to eight (8) hours at single times per day as outlined in Clause 8.1.
g) A permanent employee will be nominally allocated to the Office and paid superannuation based on nine (9) hours period at single time per day up to five (5) days per week when not allocated to a mine site.

And excludes:

a) Unscheduled and discretionary overtime outside of the hours of the nominal allocation
b) Stand by hours in excess of eight (8) hours as outlines by Clause 8.1
c) Expense related allowances
d) Leave loadings
e) Irregular and non-productivity bonuses
f) Earnings consisting of a lump sum payment of any of the following made to the employee on termination of employment:
    i. Payment in lieu of unused personal/carers leave;
    ii. Payment in lieu of unused annual leave;
    iii. Payment in lieu of unused long service leave
g) Travel and accommodation payments in accordance with Clause 27

32.0 ABSENT WITHOUT LEAVE

The absence of any employee from work for a continuous period exceeding five (5) working days without the consent of the Company will be prima facie evidence that the employee has abandoned employment and their services will be terminated. The Company will make all reasonable attempts to contact the employee prior to terminating their employment.

33.0 OCCUPATIONAL HEALTH AND SAFETY

The parties to this Agreement recognise the need to establish Occupational Health and Safety to administer occupational health and safety at their operation pursuant to current occupational health and safety legislation.

Payment for an employee to attend a renewing medical will be four (4) hours at the Hourly rate.

An employee will receive payment for the time of attendance only for pre-requisite and Induction Drug and Alcohol tests.

34.0 DRUG AND ALCOHOL POLICY

The Company is committed to creating an environment where people recognise the health and safety risks of misusing alcohol and drugs. To achieve this aim the Company has adopted an Alcohol and Drug Policy that will apply to all employees. Incorporated in the Policy is a requirement that employees participate in and abide by the alcohol and drug testing policy at the mine at which work is being performed. A copy of the complete Policy can be obtained from the Company's office.

35.0 NO EXTRA CLAIMS

The parties to this Agreement have agreed to no extra claims during the life of this Agreement unless otherwise agreed between the parties.

36.0 CONSULTATION

36.1 This term applies if the employer:

a) has made a definite decision to introduce a major change to production, program, organisation, structure or technology in relation to its enterprise that is likely to have a significant effect on the employees; or
b) proposes to introduce a change to the regular roster or ordinary hours of work of employees.

Major Change

36.2 For a major change referred to in paragraph (36.1) (a):

a) the employer must notify the relevant employees of the decision to introduce the major change; and
b) subclauses (36.3) to (36.9) apply.

36.3 The relevant employees may appoint a representative for the purposes of the procedures in this term.

36.4 If:

a) a relevant employee appoints, or relevant employees appoint, a representative for the purposes of consultation; and
b) the employee or employees advise the employer of the identity of the representative; the employer must recognise the representative.

36.5 As soon as practicable after making its decision, the employer must:

a) discuss with the relevant employees:
    I. the introduction of the change; and
    II. the effect the change is likely to have on the employees; and
    III. measures the employer is taking to avert or mitigate the adverse effect of the change on the employees; and
b) for the purposes of the discussion—provide, in writing, to the relevant employees:
    I. all relevant information about the change including the nature of the change proposed; and
    II. information about the expected effects of the change on the employees; and
    III. any other matters likely to affect the employees.

36.6 However, the employer is not required to disclose confidential or commercially sensitive information to the relevant employees.

36.7 The employer must give prompt and genuine consideration to matters raised about the major change by the relevant employees.

36.8 If a term in this agreement provides for a major change to production, program, organisation, structure or technology in relation to the enterprise of the employer, the requirements set out in paragraph (36.2)(a) and subclauses (36.3) and (36.5) are taken not to apply.

36.9 In this term, a major change is *likely to have a significant effect on employees* if it results in:

a) the termination of the employment of employees; or
b) major change to the composition, operation or size of the employer's workforce or to the skills required of employees; or
c) the elimination or diminution of job opportunities (including opportunities for promotion or tenure); or
d) the alteration of hours of work; or
e) the need to retrain employees; or
f) the need to relocate employees to another workplace; or
g) the restructuring of jobs.

Change to regular roster or ordinary hours of work

36.10 For a change referred to in paragraph (36.1)(b):

a) the employer must notify the relevant employees of the proposed change; and
b) subclauses (36.11) to (36.15) apply.

36.11 The relevant employees may appoint a representative for the purposes of the procedures in this term.

36.12 If:

a) a relevant employee appoints, or relevant employees appoint, a representative for the purposes of consultation; and
b) the employee or employees advise the employer of the identity of the representative; the employer must recognise the representative.

36.13 As soon as practicable after proposing to introduce the change, the employer must:

a) discuss with the relevant employees the introduction of the change; and
b) for the purposes of the discussion—provide to the relevant employees:

    I. all relevant information about the change, including the nature of the change; and
    II. information about what the employer reasonably believes will be the effects of the change on the employees; and
    III. information about any other matters that the employer reasonably believes are likely to affect the employees; and

c) invite the relevant employees to give their views about the impact of the change (including any impact in relation to their family or caring responsibilities).

36.14 However, the employer is not required to disclose confidential or commercially sensitive information to the relevant employees.

36.15 The employer must give prompt and genuine consideration to matters raised about the change by the relevant employees.

36.16 In this term:

relevant employees means the employees who may be affected by a change referred to in subclause (36.1).

37.0 INDIVIDUAL FLEXIBILITY ARRANGEMENT

37.1 An employer and employee covered by this enterprise agreement may agree to make an individual flexibility arrangement to vary the effect of terms of the agreement if:

a) the agreement deals with 1 or more of the following matters:

    I. arrangements about when work is performed;
    II. overtime rates;
    III. penalty rates;
    IV. allowances;
    V. leave loading; and

b) the arrangement meets the genuine needs of the employer and employee in relation to 1 or more of the matters mentioned in paragraph (a); and
c) the arrangement is genuinely agreed to by the employer and employee.

37.2 The employer must ensure that the terms of the individual flexibility arrangement:

a) are about permitted matters under section 172 of the *Fair Work Act 2009* ; and
b) are not unlawful terms under section 194 of the *Fair Work Act 2009* ; and
c) result in the employee being better off overall than the employee would be if no arrangement was made.

37.3 The employer must ensure that the individual flexibility arrangement:

a) is in writing; and
b) includes the name of the employer and employee; and
c) is signed by the employer and employee and if the employee is under 18 years of age, signed by a parent or guardian of the employee; and
d) includes details of:

I. The terms of the enterprise agreement that will be varied by the arrangement;
II. How the arrangement will vary the effect of the terms; and
III. How the employee will be better off overall in relation to the terms and conditions of his or her employment as a result of the arrangement; and

e) states the day on which the arrangement commences.

37.4 The employer must give the employee a copy of the individual flexibility arrangement within 14 days after it is agreed to.

37.5 The employer or employee may terminate the individual flexibility arrangement:

a) by giving no more than 28 days written notice to the other party to the arrangement; or
b) if the employer and employee agree in writing--at any time.

38.0 SIGNATURES TO THE AGREEMENT

Signed for the Employee (By a representative)

Signature: ______________________ Date: 15·DEC-2022

Print Name: JOHN PAUL TAYLOR

Address: 9 VICTORIA STREET

KURRI KURRI NSW 2327

Authority: ✓ Employee Representative / Coal Mine Worker ______

In the presence of:

Signature: Murray Wright ______ Date: 15/12/22
(witness)

Print Name: Murray Wright

Signed for Wilson Mining Services Pty Ltd

Signature: ______________________ Date: 15th Dec 2022

Print Name: Matthew White

Address: 16 Metro Ct Gateshead NSW 2290

Authority: General Manager

In the presence of:

Signature: ______________________ Date: 15th Dec 2022
(witness)

Print Name: Shaun McKenzie